

25CHCV03564 25CHCV03564

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25CHCV03564 Hearing Date: June 30, 2026 Dept: F51

LOS

ANGELES SUPERIOR COURT

NORTH

VALLEY DISTRICT

DEPARTMENT

F-51

JUNE 29, 2026

MOTIONS TO COMPEL FURTHER

DISCOVERY RESPONSES

(Form

Interrogatories and Special Interrogatories, Set One)

Los Angeles Superior Court

Case # 25CHCV03564

Motions

filed: 3/4/26

MOVING

PARTY: Defendant

Mirzakbar Turghan Yueksell ("Defendant")

RESPONDING

PARTY: Plaintiff

Ediluce Wooden ("Plaintiff")

NOTICE: OK

RELIEF

REQUESTED: Orders

compelling Plaintiff's further responses to the following discovery requests:

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Defendant's

Form Interrogatories, Set One, No. 6.4; and

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Defendant's

Special Interrogatories, Set One, Nos. 13, 14, and 27.

Defendant

also seeks monetary sanctions in the total amount of \$1,123.30 to be imposed against Plaintiff and/or her counsel.

TENTATIVE

RULING: Defendant's

motion to compel Plaintiff's further responses to Defendant's Form Interrogatories, Set One, is DENIED. Defendant's motion to compel Plaintiff's further responses to Defendant's Special Interrogatories, Set One, is GRANTED as to Special Interrogatory No. 13, and DENIED as to Special Interrogatory Nos. 14 and 27. The Court orders Plaintiff to provide further code-compliant responses to Defendant's Special Interrogatory No. 13 within 30 days. The Court declines to impose monetary sanctions.

BACKGROUND

This is a personal injury action in which Plaintiff alleges that on 12/15/23, "Defendant failed to maintain, repair, own or operate their vehicle such as to cause or contribute to the collision which injured Plaintiff." (Compl. p. 5.) On 10/6/25, Plaintiff filed her complaint, alleging against Defendant the following causes of action: (1) Motor Vehicle Negligence; and (2) General Negligence. On 11/25/25, Defendant filed his answer.

On 11/25/25, Defendant served his first set of discovery requests on Plaintiff. (Decl. of Manuel Magapian ¶ 6.) On 1/27/26, Plaintiff served her responses thereto. (Id. at ¶ 9.)

On 3/4/26, Defendant filed the instant motions to compel further responses to the subject discovery requests. On 6/15/26, Plaintiff filed her oppositions. No reply memoranda have been filed to date.[1]

ANALYSIS

“The party to whom interrogatories have been propounded shall respond in writing under oath separately to each interrogatory by any of the following: (1) An answer containing the information sought to be discovered; (2) An exercise of the party’s option to produce writings; or (3) An objection to the particular interrogatory.” (Code Civ Proc. § 2030.210, subd. (a).)

“Each answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits. ... If an interrogatory cannot be answered completely, it shall be answered to the extent possible. ... If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party.” (Code Civ Proc. § 2030.220.)

A propounding party may move for an order compelling further responses to interrogatories if any of the following apply: “(1) An answer to a particular interrogatory is evasive or incomplete; (2) An exercise of the option to produce documents under Section 2030.230 is unwarranted or the required specification of those documents is inadequate; or (3) An objection to an interrogatory is without merit or too general.” (Code Civ. Proc. § 2030.300, subd. (a).)

A. Meet and Confer

A motion to compel further

discovery responses must be accompanied by a meet and confer declaration stating “facts showing a reasonable and good faith attempt at an

informal resolution of each issue presented by the motion.” (Code Civ. Proc. §§

2030.300, subd. (b)(1); 2016.040.)

Here, Defendant’s

counsel declares that beginning on 1/28/26, he and Plaintiff’s counsel began the meet and confer process regarding the issues raised in the instant motions, but the parties were unable to come to an informal resolution. (Magpapien Decl.

¶¶

10–16.) While Plaintiff disputes the good faith nature of the meet and confer efforts, the Court finds that counsel has satisfied the preliminary meet and confer requirements under Code of Civil Procedure section 2030.300, subdivision (b)(1).

B.

Form

Interrogatory No. 6.4

Defendant’s Form Interrogatory No.

6.4 asks Plaintiff: “Did you receive any consultation or examination (except from expert witnesses covered by Code of Civil Procedure sections 2034.210–2034.310) or treatment from a HEALTH CARE PROVIDER for any injury you attribute to the INCIDENT? If so, for each HEALTH CARE PROVIDER state: (a) the name, ADDRESS, and telephone number; (b) the type of consultation, examination, or treatment provided; (c) the dates you received consultation, examination, or treatment; and (d) the charges to date.” (Def.’s FROG Sep. Stmt. 2:3–12.) “In lieu of preparing a compilation, abstract, audit, or summary of medical records, Plaintiff refers to her medical records attached to her response to production of document request propounded herewith and incorporates same by reference as though set out fully herein, pursuant to Code of Civil Procedure § 2030.230.” (Id. at 2:14–17.)

Defendant argues that further

responses are warranted because “Plaintiff is required to provide an address and telephone number for each Health Care Provider for any injury Plaintiff attributes to the INCIDENT and is required to provide the type of consultation, examination, or treatment she received from two providers: Henry Mayo Newhall Memorial Hospital and Corey Michael Wilson MD.” (Id. at 3:21–24.) In

opposition, Plaintiff argues that she “expressly invoked [Code of Civil Procedure] section 2030.230 and referred Defendant to the medical records, which contain complete contact information for each provider on billing statements, letterhead, and patient records.” (Pl.’s FROG Opp. 9:10–13.)

“If the answer to an interrogatory would necessitate the preparation or the making of a compilation, abstract, audit, or summary of or from the documents of the party to whom the interrogatory is directed, and if the burden or expense of preparing or making it would be substantially the same for the party propounding the interrogatory as for the responding party, it is a sufficient answer to that interrogatory to refer to this section and to specify the writings from which the answer may be derived or ascertained. This specification shall be in sufficient detail to permit the propounding party to locate and to identify, as readily as the responding party can, the documents from which the answer may be ascertained. The responding party shall then afford to the propounding party a reasonable opportunity to examine, audit, or inspect these documents and to make copies, compilations, abstracts, or summaries of them.” (Code Civ. Proc. § 2030.230.)

Here, Plaintiff maintains that “the medical records produced by Plaintiff contain detailed descriptions of the treatment provided.” (Pl.’s FROG Opp. 10:20–21.) In invoking section 2030.230, Plaintiff asserts that “the burden of extracting treatment types and appointment dates from the medical records is substantially the same—if not less—for Defendant than for Plaintiff.” (Id. at 11:18–20.)

In his response to Plaintiff’s separate statement, Defendant argues that Plaintiff’s responses remain code-deficient because “Plaintiff’s RPD responses consisted of merely a link for Defendant to retrieve documents in which Plaintiff only produced a portion of the records from providers that were listed in her form interrogatories responses. Plaintiff’s responses were not sufficient answers because Plaintiff did not correctly and completely (sufficiently) specify the writings.” (Def.’s Response to Pl.’s Sep. Stmt. 2:18–21.) “As Plaintiff’s responses lack the necessary detail, further responses are warranted.” (Id. at 3:12–13.)

Based on the foregoing, the Court agrees with Plaintiff that she has sufficiently provided a response to Defendant’s Form Interrogatory No. 6.4 which complies with Code of Civil Procedure section 2030.230. The Court finds that in listing the names of the

medical providers and the charges to date, Plaintiff has sufficiently specified the writings from which the answer to Form Interrogatory No. 6.4 may be derived or ascertained. Accordingly, the Court denies Defendant's motion to compel Plaintiff's further responses to Defendant's Form Interrogatory No. 6.4.

C. Special Interrogatories

Defendant argues that "Plaintiff has failed to provide any responses to Special Interrogatories Nos. 13, 14, and 27." (Def.'s SPROG Mot. 2:12–13; Ex. C to Magpapien Decl.) In opposition, Plaintiff argues that "this assertion is incorrect. Plaintiff served timely objections on December 29, 2025, and verified responses on January 27, 2026. Those responses include responses to interrogatories Nos. 13, 14, and 27." (Pl.'s SPROG Opp. 9:3–6, citing Ex. A to Decl. of Michael Stone-Molloy.)

The Court notes that Defendant has not filed any reply argument disputing that Plaintiff served timely objections to Special Interrogatory Nos. 13, 14, and 27 on 12/29/25. Accordingly, the Court addresses the merits of Plaintiff's objections as follows.

1.

Special
Interrogatory No. 13

Defendant's Special Interrogatory

No. 13 asks Plaintiff to "identify by name, address, and telephone number of all your primary care/family doctors you have seen in the five (5) years prior to the incident which is the subject of this lawsuit." (Def.'s SPROG Sep. Stmt. 2:4–6.) In response, Plaintiff asserted objections based on, *inter alia*, attorney-client privilege, attorney work product, expert opinion, vagueness, and privacy. (Ex. A to Stone-Molloy Decl., 8:23–9:5.)

Plaintiff argues that no further responses are warranted because "Defendant can issue a subpoena to Kaiser Permanente requesting Plaintiff's medical records for the five years preceding the collision. Those records will identify any treating physicians. Requiring Plaintiff to undertake that same investigation imposes a duplicative burden and defeats the statute's efficiency purpose." (Pl.'s SPROG Opp. 9:26–10:3.) The Court disagrees. "Each answer in a response to interrogatories shall be as

complete and straightforward as the information reasonably available to the responding party permits.” (Code Civ. Proc. § 2030.220, subd. (a).) The Court is not persuaded that the burden should be on Defendant to subpoena Plaintiff’s medical records to obtain information that Plaintiff is able to provide.

Based on the foregoing, the Court grants Defendant’s motion to compel Plaintiff’s further responses to Defendant’s Special Interrogatory No. 13.

2.

Special
Interrogatory No. 14

Defendant’s Special Interrogatory

No. 14 asks Plaintiff to “identify by name, address, and telephone number all individuals, excluding medical providers, with knowledge of any and all physical pain, mental suffering, loss of employment of life, disfigurement, physical impairment, inconvenience, grief, anxiety, humiliation, and/or emotional distress you allege you sustained as a result of the subject incident.” (Def.’s SPROG Sep. Stmt. 2:26–3:2.) In response, Plaintiff asserted objections based on, inter alia, attorney-client privilege, attorney work product, expert opinion, vagueness, and privacy. (Ex. A to Stone-Molloy Decl., 9:13–23.)

Plaintiff argues that no further responses are warranted because “under California law, interrogatories seeking the identification of witnesses to support a party’s contentions are premature until the propounding party has conducted sufficient discovery to frame meaningful contention interrogatories. Defendant propounded this interrogatory on November 25, 2025, barely six weeks after Plaintiff filed her Complaint. At that time, neither party had conducted depositions, exchanged expert designations, or completed written discovery. Defendant cannot reasonably claim to need lay-witness identification at such an early stage of litigation.” (Pl.’s SPROG Opp. 10:20–11:2.) “Second, the interrogatory is overbroad. It seeks the identity of ‘all individuals’ with knowledge of Plaintiff’s pain, suffering, impairment, grief, anxiety, or humiliation. This sweeping request encompasses every friend, family member, coworker, or acquaintance who may have observed Plaintiff’s injuries or symptoms. Plaintiff has no duty to conduct an investigation to identify every such person, nor does Plaintiff have a duty to provide contact information for individuals whose observations may be protected by privacy considerations.” (Id. at 11:3–11.)

The Court disagrees with Plaintiff's prematurity argument, particularly where Defendant served the subject discovery requests over seven months ago. However, the Court agrees with Plaintiff that Special Interrogatory No. 14 is facially overbroad. Based on the foregoing, the Court denies Defendant's motion to compel Plaintiff's further responses to Defendant's Special Interrogatory No. 14.

3.

Special
Interrogatory No. 27

Defendant's Special Interrogatory

No. 27 asks Plaintiff to "identify by name, address, and telephone number all medical providers who provided care or treatment to the same areas of your body in the past ten (10) years that you claim were injured in the incident which the subject of this lawsuit." (Def.'s SPROG Sep. Stmt. 3:22–25.) In response, Plaintiff asserted objections based on, inter alia, attorney-client privilege, attorney work product, expert opinion, vagueness, and privacy. (Ex. A to Stone-Molloy Decl., 16:12–22.)

Plaintiff argues that no further responses are warranted because "here, Plaintiff has not alleged that the December 15, 2023 collision aggravated any pre-existing condition." (Pl.'s SPROG Opp. 12:17–18.) "Plaintiff has consistently reported that she had no physical complaints prior to the collision. Because Plaintiff has not placed pre-existing conditions at issue, Defendant is not entitled to discover Plaintiff's unrelated medical history for the ten years preceding the collision." (Id. at 12:24–28.)

Plaintiff further argues that the interrogatory is overbroad because "Plaintiff alleges injuries to her head, neck, chest/ribs, left shoulder, low back, left hip, and abdomen. 'The same areas' could encompass any treatment to Plaintiff's head, neck, torso, shoulder, back, hip, or abdomen over a ten-year period—virtually her entire body. The interrogatory would require Plaintiff to disclose treatment for unrelated conditions such as routine physical examinations, gynecological care, gastrointestinal issues, respiratory infections, or any other condition affecting those broad anatomical regions." (Id. at 13:7–15.)

Based on

the foregoing, the Court agrees with Plaintiff that Special Interrogatory No. 27 is facially overbroad. Based on the foregoing, the Court denies Defendant's motion to compel Plaintiff's further responses to Defendant's Special Interrogatory No. 27.

D. Monetary Sanctions

"The court shall impose a monetary sanction ... against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel a response to interrogatories, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." (Code Civ. Proc. § 2030.290, subd. (c).) Additionally, "the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).)

Here, Defendant requests a total combined sum of \$1,123.30 in monetary sanctions to be imposed against Plaintiff and/or her counsel. The Court finds that the imposition of sanctions would be unjust here, as Defendant did not fully succeed on his motions. Accordingly, the Court declines to impose monetary sanctions.

CONCLUSION

Defendant's motion to compel Plaintiff's further responses to Defendant's Form Interrogatories, Set One, is DENIED. Defendant's motion to compel Plaintiff's further responses to Defendant's Special Interrogatories, Set One, is GRANTED as to Special Interrogatory No. 13, and DENIED as to Special Interrogatory Nos. 14 and 27. The Court orders Plaintiff to provide further code-compliant responses to Defendant's Special Interrogatory No. 13 within 30 days. The Court declines to impose monetary sanctions.

[1]

On 6/23/26, Defendant filed a response to Plaintiff's separate statement regarding Form Interrogatory No. 6.4.